

(*Ibid.*) Relevant factors include “prior negotiations, contemplated future consequences, the parties’ course of dealings, and the contract’s choice-of-law provision.” (*Ibid.*) Here, Plaintiffs submit no evidence to show where the prior negotiations occurred or reflect on the parties’ court of dealings. The contractor agreement itself also chooses Pennsylvania law and Pennsylvania courts. (*Id.*, ¶ 10.5.)

As such, the Court finds that Plaintiffs did not meet their burden as to Steem Monsters.

As to each individual Defendant (Rosen and McCoy), “[p]ersonal jurisdiction must be based on forum-related acts that were *personally* committed by *each* nonresident defendant.” (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 113; emphasis added.) For Rosen, his declaration shows that he lives in and works in Pennsylvania and signed the contractor agreement there in Pennsylvania. (Rosen Decl., ¶¶ 3, 13, 21.) Plaintiffs’ opposition provides no evidence that Rosen *personally* solicited business with California residents, or that he committed a tort at California. The FAC has some allegations, including an alleged 4/30/25 statement involving Rosen and McCoy, that they would “cut JPTR completely.” (FAC ¶ 37). But again, the unverified pleading is not evidence.

Similarly for McCoy, he declares that he lives in and works in North Carolina, and was not involved in Gorrell’s employment or signing the agreement. (McCoy Decl., ¶¶ 3-11.) Plaintiffs supplied no evidence to the contrary.

In short, Plaintiffs did not meet their burden as to either individual. On the present record, the evidence is insufficient to show minimum contacts.

Plaintiffs, alternatively, seek continuance for limited jurisdictional discovery. However, to prevail, “the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts establishing jurisdiction.” Plaintiffs did not do so.

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CASE #	CASE NAME	HEARING NAME
CVME2511855	GORRELL VS STEEM MONSTERS CORPORATION	DEMURRER ON 1 ST AMENDED COMPLANT

Tentative Ruling: Demurrer is taken off calendar without prejudice.

Defendants concurrently demur to all 11 causes of action in the FAC for failure to state facts sufficient and on uncertain grounds. However, granting the motion to quash would leave the court with no jurisdiction to rule on Defendants’ demurrer.